

of administration, and would not be justified in the breach of this legal obligation by pleading any expression of inten-

property vests in an assignee immediately on acceptance of the trust by him, and he cannot then divest himself of it by simply refusing to carry out the trust; *Seal v. Duffy*, 4 Pa. St. 274; if trustee is not knowing to the instrument, his assent will be presumed; *Ward v. Lewis*, 4 Pick. 518; *Pingree v. Comstock*, 18 Pick. 46; *Shepherd v. M'Evers*, 4 Johns. Ch. 136; *Merrills v. Swift*, 18 Conn. 257. An assignment has been held good as against creditors, where assignor is out of state, from the time of his placing it in the post office; *Johnson v. Sharp*, 31 Ohio St. 611. Liens may take priority of the actual acceptance by the trustee; *Crosby v. Hillyer*, 24 Wend. 280. If there is sufficient reason, one creditor may have an assignment nullified, and sometimes obtains a preference; *Wakeman v. Grover*, 4 Paige, 24; *Burrall v. Leslie*, 6 Paige, 445; in such case creditors will be paid *pari passu*; *Austin v. Bell*, 20 Johns. 442; *M'Meckin v. Edmonds*, 1 Hill Eq. 293.

In enforcing a trust of this kind, the nature of the instrument will determine who are necessary parties; *Haughton v. Davis*, 23 Me. 28; *Kerr v. Blodgett*, 48 N. Y. 62; *Hobart v. Andrews*, 21 Pick. 532. One may be creditor, cestui que trust, and trustee, but can receive no advantage over other creditors, because of it; *Harrison v. Mock*, 10 Ala. 185; *Prevost v. Gratz*, Pet. C. C. 373; *Miles v. Bacon*, 4 J. J. Marsh. 468; *Jewett v. Woodward*, 1 Edw. Ch. 195; *Pratt v. Adams*, 7 Paige, 615.

An assignment to pay debts, carries with it by implication, a power to sell the assigned property; *Gould v. Lamb*, 11 Met. 84; *Goodrich v. Proctor*, 1 Gray, 567.

The purchaser need not look after the application of the purchase-money; *Gardner v. Gardner*, 3 Mason, 178; *Hauser v. Shore*, 5 Ired. Eq. 357; *Williams v. Otey*, 8 Humph. 508; *Andrews v. Sharhawk*, 13 Pick. 393; unless the trust is confined to special debts; *Cadbury v. Duval*, 10 Barr, 267; *Duffy v. Calvert*, 6 Gill, 487.

The same rules apply to partnerships, and the general principles relating to firm and individual debts; *Murrill v. Neill*, 8 How, 414; *Andress v. Miller*, 15 Pa. St. 318; *Mills v. Argall*, 6 Paige, 577; *Jackson v. Cornell*, 1 Sandf. Ch. 348.

A direction to pay debts includes only such as could be legally collected from the estate; *Rogers v. Rogers*, 3 Wend. 503. Only debts bearing interest, will have it added to the principal; *Bryant v. Russell*, 23 Pick. 508.

An assignment or trust for the benefit of creditors does not affect the Statute of Limitations; *Christy v. Flemington*, 10 Barr, 129; *Read v. Johnson*, 1 R. I. 81.

A creditor need not have a judgment at law to maintain a bill against a trustee, to prevent him from abusing the trust and appropriating the trust funds to himself; *Miller v. Davidson*, 3 Gil. 518; 44 Am. Dec. 715. The court will see that such a trust does not fail for want of a trustee, even if the assignee named renounces or relinquishes it; *Scull v. Reeves*, 2 Green's Ch. 131; 29 Am. Dec. 703; the ignorance of the assignor will not be cause for setting aside the assignment; *Ib.*; assignees in trust for creditors are not bona fide purchasers for value, and will not be protected as they would be; *Clark v. Flint*, 22 Pick. 231; 33 Am. Dec. 733; in case of suit assignee brings action in his own name; *Buck v. Swazey*, 35 Me. 41; 56 Am. Dec. 681. Creditor to take advantage of fraud in deed of trust, should get judgment